

25PSCV00205 25PSCV00205

County: los-angeles

Division: Civil Law and Motion

Department: G

Hearing date: 2026-08-31

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Case Number: 25PSCV00205 Hearing Date: August 31, 2026 Dept: G

Petitioner

Francisco Guzman Gonzalez's Amended Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Plaintiff/Claimant Francisco Guzman Escobedo, a Minor

Respondent:

NO OPPOSITION

TENTATIVE

RULING

Petitioner

Francisco Guzman Gonzalez's Amended Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Plaintiff/Claimant Francisco Guzman Escobedo, a Minor is DENIED WITHOUT PREJUDICE.

BACKGROUND

This

is a personal injury action. On January

19, 2024, plaintiff/claimant Francisco Guzman Escobedo (Guzman Escobedo), the minor child of petitioner Francisco Guzman Gonzales (Guzman Gonzalez), allegedly sustained injuries when he stepped into a hole, a plastic vent pipe maintained and controlled by defendant Southern California Edison Co. (Edison). The sharp edges of the pipe allegedly impaled Guzman Escobedo, and he allegedly suffered a Y-shaped puncture and laceration. Cross-defendant SVG

Consulting, Inc. (SVG) allegedly provided labor and equipment to Edison. At the time of the injury, Guzman Escobedo and his family were allegedly waiting for a bus operated by defendant Tufesa

USA, LLC (Tufesa) near a bus stop within defendant City of Pomona (the City).

On

January 17, 2025, Guzman Escobedo filed the Complaint. On June 13, 2025, Guzman Escobedo filed the operative Amended Complaint, alleging causes of action for (1) general negligence (against Edison), (2) general negligence (against Tufesa), and (3) general negligence (against the City).

On

July 17, 2025, Tufesa filed a Cross-Complaint against Roe Defendants (including Edison, the City, and SVG), the City filed a Cross-Complaint against Edison and Roe Defendants, and Edison filed a Cross-Complaint against SVG and Roe Defendants. On February 4, 2026, SVG filed a Cross-Complaint against Zoe Defendants (including Tufesa and the City).

On

June 25, 2026, the parties informed the court that they settled the case. On August 17, 2026, Guzman Gonzalez filed this amended petition to confirm minor's compromise, which is unopposed.

The

petition is set for hearing on August 31, 2026.

ANALYSIS

Guzman

Gonzalez seeks the court's approval of a settlement reached between all parties. For the following reasons, the petition is DENIED

WITHOUT PREJUDICE.

Legal

Standard

An

enforceable settlement of a minor's or incompetent's claim can only be consummated with court approval. (Prob.

Code, §§ 2504, 3500, 3600 et seq.; Code Civ. Proc., § 372.) For this purpose, a petition for approval must be presented to the court, and until it is granted, there is no final

settlement. (*Scruton v. Korean Air*

Lines Co. (1995) 39 Cal.App.4th 1596, 1603–1606.) Any settlement agreement therefore is voidable by the minor's guardian ad litem.

(Id. at 1606.)

Probate

Code section 3600 et seq. governs how the settlement proceeds are to be paid. Pursuant to Probate Code section 3601, the order shall approve payment of reasonable expenses from the settlement as follows:

The court making the order or giving the judgment referred to in Section 3600, as a part thereof, shall make a further order authorizing and directing that such reasonable expenses (medical or otherwise and including reimbursement to a parent, guardian, or conservator), costs, and attorney's fees, as the court shall approve and allow therein, shall be paid from the money or other property to be paid or delivered for the benefit of the minor or incompetent person.

(Prob. Code, § 3601, subd. (a).)

In

cases pursuant to Probate Code section 3601, "unless the court has approved the fee agreement in advance, the court must use a reasonable fee standard when approving and allowing the amount of attorney's fees payable from money or property paid or to be paid for the benefit of a minor or a person with a disability." (Cal. Rules of Court, rule 7.955(a)(1).) In doing so, "[t]he court must give consideration to the terms of any representation agreement made between the attorney and the representative of the minor or person with a disability and must evaluate the agreement based on the facts and circumstances existing at the time the agreement was made, except where the attorney and the representative of the minor or person with a disability contemplated that the attorney's fee would be affected by later events." (Cal. Rules of Court, rule 7.955(a)(2).)

Discussion

Service

of the Petition and Notice

As

a preliminary matter, Guzman Gonzalez failed to include a proof of service with the amended petition. "Before filing any document, a party must serve, by any method permitted by the Code of Civil

Procedure, one copy of the document on the attorney for each party separately represented, on each unrepresented party, and on any other person or entity when required by statute or rule. The party must attach to the document presented for filing a proof of service showing service on each person or entity required to be served. . . . The proof must name each party represented by each attorney served.” (Cal. Rules of Court, rule 8.817(a)(1)–(a)(2).) Here, Guzman Gonzalez did not attach a proof of service to the petition or file a separate proof of service with the petition. However, all parties were represented by counsel at the previous hearing regarding the forthcoming petition. (See 6/25/2026 Min. Order, p. 1.) Every party named in the Amended Complaint and in each Cross-Complaint is a party to the settlement agreement, and there is no opposition contesting proper notice. (See 6/25/2026 Min. Order, p. 1; see also *Moulton Niguel Water Dist. v. Colombo* (2003) 111 Cal.App.4th 1210, 1215.) Thus, in the interest of judicial efficiency, the court considers the amended petition on the merits. (Cal. Rules of Court, rule 3.1300(d); see *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262.)

Merits
of the Petition

Pursuant
to the settlement agreement reached between the parties, the defendants and cross-defendants agree to pay a total of \$125,000.00 to Guzman Escobedo. (See Amend. Pet., ¶ 10.) The petition requests that \$12,204.00 be used for medical expenses, \$29,947.00 be used for attorney's fees, \$5,214.00 be used for other expenses, and \$77,635.00 for Guzman Escobedo. (See Amend. Pet., ¶ 16.)

“In
determining whether to grant a guardian ad litem's petition to approve a settlement of the ward's claims, a court must determine whether it is reasonable and in the minor's best interest.”
(*Chui v. Chui* (2022) 75 Cal.App.5th 873, 899.) Generally, courts must consider the following factors: 1) the circumstances of the accident or other incident giving rise to the litigation, particularly the facts bearing on the payor's potential liability and the minor's damages; 2) the amount of the proposed settlement; 3) how the settlement will be paid (e.g. in a lump sum or via an annuity); 4) the

nature of the injury and the minor's current medical status and prognosis; and
5) the amount of attorneys' fees and other transaction costs being
requested. (See, e.g., Kostakos
v. Holewinski (Dec. 6, 2019, 37-2018-00029286-CU-PA-CTL) [nonpub. opn.], applying
Cal. Rules of Court, rule 7.950.)

Medical Expenses

The
petition reflects that Guzman Escobedo incurred \$24,363.00 in total medical
expenses before any reductions. (See Amend.
Pet., ¶ 12a(1).) The petition states
that Los Angeles County Fire Department charged \$0.00, Care Ambulance Service
charged \$3,341.00, Pomona Valley Hospital Medical Center charged \$6,437.00, CEP
America California charged \$2,347.00, Pomona Valley Imaging Medical Group
charged \$40.00, Evangeline Gimbel, M.D. charged \$650.00, HealthPointe Medical
Group, Inc. – Ortho charged \$2,473.00, HealthPointe Medical Group, Inc. – Psych
charged \$4,815.00, HealthPointe Medical Group, Inc. – Physical Therapy charged
\$1,995.00, Centrelake Imaging charged \$1,800.00, and HMA Translation charged \$465.00,
which totals \$24,363.00. (See Amend.
Pet., ¶¶ 12b(5)(b)(i)–12b(5)(b)(xi).)
Thus, the petition properly accounts for the total medical expenses.

Regarding
medical expenses paid, the petition reflects that the total medical expenses
paid was \$875.00. (See Amend. Pet.,
¶ 12a(2).) The petition states that Care
Ambulance Service was paid \$140.00, Pomona Valley Hospital Medical Center was
paid \$111.00, CEP America California America was paid \$182.00, and Evangeline
Gimbel, M.D. was paid \$441.00, which totals \$874.00. (See Amend. Pet., ¶¶
12b(5)(b)(ii)–12b(5)(b)(iv), 12b(5)(b)(vi).)
Thus, the petition properly accounts for the medical expenses paid.

Regarding
reductions, the petition reflects that the total negotiated, contractual, or
statutory reductions amount to \$11,900.00.
(See Amend. Pet., ¶ 12a(3).)
However, the petition also states that Care Ambulance Service agreed to
a \$3,201.00 reduction, Pomona Valley Hospital Medical Center agreed to a

\$6,326.00 reduction, CEP Americal California agreed to a \$2,165.00 reduction, Pomona Valley Imaging Medical Group agreed to a \$40.00 reduction, and Evangeline Gimbel, M.D. agreed to a \$208.00 reduction, which totals \$11,940.00. (See Amend. Pet., ¶¶ 12b(5)(b)(ii)–12b(5)(b)(vi).) Thus, the petition is internally inconsistent as to the reductions.

Regarding reimbursement, the petition reflects that the total for the medical expenses to be paid or reimbursed from the proceeds of the settlement is \$12,204.00. (See Amend. Pet., ¶ 12a(4).) However, the petition also states that HealthPointe Medical Group, Inc. – Ortho is to be paid \$2,473.00 from the settlement, HealthPointe Medical Group, Inc. – Psych is to be paid \$4,815.00 from the settlement, HealthPointe Medical Group, Inc. – Physical Therapy is to be paid \$1,995.00 from the settlement, Centrelake Imaging is to be paid \$1,800.00 from the settlement, and HMA Translation is to be paid \$465.00 from the settlement, which totals \$11,548.00. (See Amend. Pet., ¶¶ 12b(5)(b)(vii)–12b(5)(b)(xi).) Thus, the petition is internally inconsistent as to the medical expenses to be paid or reimbursed from the proceeds.

Regarding liens, the petition reflects \$12,423.00 in statutory or contractual liens. (See Amend. Pet., ¶ 12a(5).) These liens include the Medi-Cal lien of \$875.00 and the liens from medical service providers of \$11,548.00, which total \$12,423.00. (See Amend. Pet., ¶¶ 12b(4)–12b(5).) Thus, the petition properly accounts for the liens. (Additionally, the court notes that Medi-Cal will accept \$656.00 in reimbursement in full satisfaction of its lien, which reduces the amount to be reimbursed from the proceeds of the settlement supra by \$219.00. (See Amend. Pet., ¶ 12b(4)(c).) Thus, \$12,204.00 in proceeds from the settlement are needed to pay off the liens. (See Amend. Pet., ¶¶ 12b(4)–12b(5); see also Amend. Pet., ¶¶ 14a(1), 16b, requesting approval of \$12,204.00 of proceeds from the judgment to be used for medical expenses.) However, the petition does not account for the different totals for the amount to be paid or reimbursed from the proceeds of the settlement and the amount needed to pay off the liens.)

Based on this information, the court finds that Plaintiffs failed to account properly

for the requested medical expenses.

Attorney's Fees

Regarding

attorney's fees, Guzman Gonzalez executed a retainer agreement with Guzman Escobedo's counsel for a 40% contingency fee if the case settled during litigation. (See Amend. Pet., Attach. 17a, Legal Retainer Agreement.)

The requested attorney's fees are less than 25% of the gross settlement amount. (See Amend. Pet., ¶ 13a.) Counsel's declaration includes details about their work in this litigation. (See Amend. Pet., Attach. 13a, Rios Decl., ¶¶ 1–8.)

In light of this evidence, the court finds the requested attorney's fees are reasonable.

Litigation Costs

Regarding

litigation costs, the petition reflects litigation costs of \$5,214.00. (See Amend. Pet., ¶ 13b.) Upon review, the court finds that the litigation costs were reasonably incurred.

Disposition of Funds to the Claimant

The

remaining \$77,635.00 will be deposited in insured accounts in one or more financial institutions in this state, subject to withdrawal only on authorization of the court. (See Amend. Pet., ¶ 18b(2).) Upon review, the court finds the amount awarded to Guzman Escobedo to be reasonable and finds the disposition of the funds is proper.

Nevertheless,

the petition is defective because it did not properly account for medical expenses. Accordingly, the petition to confirm minor's compromise is DENIED WITHOUT PREJUDICE, and petitioner Guzman Gonzalez is ORDERED to FILE a corrected MC-350 PETITION.

CONCLUSION

For

these reasons, the amended petition for approval of minor's compromise is DENIED

WITHOUT PREJUDICE. Petitioner Francisco

Guzman Gonzalez is ORDERED to FILE a corrected MC-350 PETITION.